



CHAPTER xxxii.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Dysart Corporation. A.D. 1929.
[10th May 1929.]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by one of His Majesty's Principal Secretaries of State under the provisions of the Private Legislation Procedure (Scotland) Act 1899 as read with the Secretaries of State Act 1926 and it is requisite that the said Order should be confirmed by Parliament :

62 & 63 Vict.
c. 47.
16 & 17
Geo. 5. c. 18.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed.

Confirma-
tion of
Order in
schedule.

2. This Act may be cited as the Dysart Corporation Order Confirmation Act 1929.

Short title.

A.D. 1929.

SCHEDULE.

DYSART CORPORATION.

Provisional Order to authorise the provost magistrates and councillors of the burgh of Dysart to borrow money and levy rates for the discharge of debts affecting the harbour of Dysart.

WHEREAS the burgh of Dysart in the county of Fife (hereinafter called "the burgh") is a royal burgh under the municipal administration of the provost magistrates and councillors thereof (hereinafter called "the Corporation") :

And whereas the harbour of Dysart has from time immemorial formed part of the common good of the burgh and is under the management of the Corporation :

And whereas the trade of the harbour is confined to the export of coal from pits situated in the vicinity and in particular from the Lady Blanche Pit Dysart :

And whereas in the year one thousand nine hundred and twenty-four it was necessary in order to meet the requirements of the coal shippers to clean the dock and execute sundry repairs on the harbour :

And whereas the Corporation at the special request of the coal shippers and in anticipation of the continuance of a trade which had been in existence for over two hundred years expended the sum of five thousand one hundred and twenty-two pounds on the said works :

And whereas soon after the said works were executed owing to conditions affecting the coal trade generally shipments of coal at the harbour dwindled and finally ceased :

And whereas the said Lady Blanche Pit has now been closed and the supply of coal from that and other sources has been discontinued :

And whereas the Corporation are advised that the said Lady Blanche Pit will not be re-opened and that there is no prospect of a renewal of shipping from Dysart

and they are therefore under the necessity of closing the harbour : A.D. 1929.

And whereas owing to the discontinuance of the shipment of coal the revenue derived from the harbour together with the surplus revenue from the other property belonging to the common good of the burgh is insufficient either to pay the expenses of maintaining the harbour or to meet the cost of the said works and the interest charges thereon :

And whereas the estimated amount which would be realised from all the common good property of the burgh if the same were sold is likewise insufficient to meet the said cost :

And whereas hitherto the harbour has been a source of prosperity and profit to the burgh from which the whole community has benefited :

And whereas it is necessary to meet a bank overdraft incurred for the cost of the said works the interest charges thereon and the deficiency in the revenue of the harbour since the said works were executed :

And whereas the deficiency on account of the harbour at the fifteenth day of May one thousand nine hundred and twenty-eight exceeded the sum of six thousand pounds :

And whereas it is expedient that the Corporation should be empowered to borrow money and levy a rate to meet the said deficiency in the manner hereinafter provided :

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last mentioned Act as read with the Secretaries of State Act 1926 the Secretary of State orders as follows :—

1. This Order may be cited as the Dysart Corporation Order 1929 and shall come into operation at the date of the passing of the Act confirming the same which date is hereinafter referred to as "the commencement of this Order."

Short title
and citation
of Order.

[Ch. xxxii.] *Dysart Corporation* [19 & 20 GEO. 5.]
Order Confirmation Act, 1929.

A.D. 1929.

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Interpreta-
tion.

2. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Order have the same respective meanings unless there be something in the subject or context repugnant to such construction.

In this Order unless there be something in the subject or context repugnant to such construction the following words and expressions shall have the following meanings (that is to say):—

“The burgh” means the royal burgh of Dysart within the municipal boundaries thereof;

“The Corporation” means the provost magistrates and councillors of the burgh;

“The Police Acts” means the Burgh Police (Scotland) Acts 1892 to 1911 and any Act amending the same;

“The harbour” means the harbour of Dysart.

Power to
Corporation
to impose
and levy
special
assessment.

3.—(1) Subject to the provisions of this Order the Corporation shall in each year after the fifteenth day of May one thousand nine hundred and twenty-nine for the purposes of discharging the debt affecting the harbour including the repayment of the sum advanced on bank overdraft and interest thereon and the deficiency on the harbour account and paying the costs of this Order (all hereinafter referred to as “the harbour debt”) and for the purpose of paying any expense of and connected with the raising of the same impose and levy in equal proportions on and from all owners and occupiers of lands and heritages within the burgh an assessment referred to in this Order as “the harbour debt assessment” of such amount as shall be required for the said purposes which assessment shall be levied and recovered in the same manner as the general improvement rate authorised by the Police Acts is levied and recovered and all the provisions of those Acts (other than the limitation of rate) with respect to the mode of imposing levying and recovering the general improvement rate shall *mutatis mutandis* extend and apply to the said assessment hereby authorised.

(2) The said assessment so leviable shall be in addition to any other assessment levied by the Corporation under statutory authority but shall not exceed one shilling and sixpence in the pound of the rateable value of lands and heritages in the burgh.

A.D. 1929.

4. The Corporation may accept and apply towards the purposes of the harbour debt any moneys which may be locally contributed by gift to them for those purposes. Power to accept local contributions.

5.—(1) The Corporation may from time to time borrow at interest— Power to borrow.

(a) Such sum or sums not exceeding six thousand three hundred pounds as may be necessary for the purpose of discharging the debt affecting the harbour including the repayment of the sum advanced on bank overdraft and interest thereon and the deficiency on the harbour account and with the sanction of and subject to the conditions as to period of repayment and otherwise prescribed by the Secretary of State such further sums as may be requisite for the said purposes;

(b) Such additional sum as may be necessary for paying the costs of this Order.

(2) In order to secure the repayment of money borrowed under this section and the payment of interest thereon the Corporation shall charge the harbour debt assessment and shall apply the surplus annual revenues arising from the estate funds and property forming the common good of the burgh.

(3) The Secretary of State shall have and may exercise in relation to any such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889.

6. In the application to the burgh of section 49 (Power to borrow temporarily) of the Burgh Police (Scotland) Act 1903 the expression “any public general Act” shall be deemed to include this Order. Power to borrow temporarily.

7. All moneys borrowed by the Corporation under this Order shall be repaid within such period not exceeding thirty years as the Corporation may determine. Period for repayment of money borrowed.

8. All moneys borrowed under this Order shall be applied only for the purposes for which capital money may properly be applied and not otherwise. Application of borrowed money.

9. Any money borrowed under the provisions of this Order which shall be discharged otherwise than by means of a sinking fund or instalments or out of moneys derived from the sale of land may be reborrowed by the Corporation from time to time if required for the purposes Power to re-borrow.

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Order Confirmation Act, 1929.

A.D. 1929. — of this Order Provided that all moneys so reborrowed by the Corporation shall for the purpose of repayment be deemed part of the sum originally borrowed by them and shall be repaid within the period prescribed for the repayment of the moneys in lieu of which such reborrowing has been made.

Incorporation of provisions of Burgh Police (Scotland) Acts.

10. The provisions of the Police Acts as to the borrowing of money for the general purposes of those Acts shall in so far as applicable and not inconsistent with the provisions of this Order be incorporated with this Order and shall so far as aforesaid apply to the borrowing by the Corporation of the money which they are by this Order authorised to borrow and the mortgages or bonds to be granted by the Corporation for the purposes of this Order shall refer to the title of this Order.

Mode of repayment.

11. The Corporation shall pay off all moneys borrowed under the provisions of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them.

Sinking fund.

12.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order or for the payment of costs such sinking fund shall be formed or maintained by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed.

(2) Every sum paid to the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority other than the Corporation the Corporation being at liberty from time to time to vary and transpose such investments.

(3) The interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. A.D. 1929.
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(5) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

(6) If it appears to the Secretary of State or to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose.

(7) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(8) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order will in the opinion of the Corporation be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may with the consent of the Secretary of State reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(9) If the amount in any sinking fund at any time will in the opinion of the Corporation be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of the Secretary of State discontinue the annual payments to such sinking fund.

(10) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation may determine.

A.D. 1929.

Annual
return to
Secretary of
State with
respect to
sinking
fund.

13. The town chamberlain to the Corporation shall within two months after the expiration of each financial year during which any sum is by this Order required to be set apart as a sinking fund transmit to the Secretary of State a return in such form as may be prescribed by him and verified by statutory declaration if so required by him showing the amount which has been so set apart in respect of that year and also showing the purpose to which any portion of such sinking fund has been applied during the same period and the total amount remaining to the credit of such fund at the end of the same period and in the event of any default in making such return the town chamberlain shall be liable to a penalty not exceeding twenty pounds, recoverable by the Secretary of State as a debt to the Crown is recoverable. If it appears to the Secretary of State by such return or otherwise that the Corporation have failed to pay any instalment or to set apart the sum required by this Order as a sinking fund or have applied any portion of the moneys set apart for that fund to any purposes other than those authorised by this Order the Secretary of State may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart as part of the sinking fund and such order shall be enforceable by decree of either division of the inner house of the Court of Session in Scotland pronounced in a summary application presented for that purpose.

For ap-
pointment
of a judicial
factor.

14.—(1) The mortgagees in respect of money borrowed under this Order may enforce payment of arrears of interest or principal and interest due on their mortgages by the appointment of a judicial factor.

(2) In order to authorise the appointment of a judicial factor in respect of arrears of principal the amount owing to the mortgagees by whom the application for a judicial factor is made shall not be less than one thousand pounds in the whole.

(3) Sections 86 and 87 of the Commissioners Clauses Act 1847 shall be incorporated with this Order and in such sections the "commissioners" shall mean the Corporation and the expression "receiver" shall mean judicial factor and the expressions "mortgage" and "mortgagee" shall respectively include any security

for money borrowed under this Order and the holder of any such security. A.D. 1929.

15. Any person lending or paying money to the Corporation under this Order shall not be bound to inquire as to the observance by them of any of the provisions of this Order or be bound to see to the application or be answerable for any loss or non-application of the money or of any part thereof. Protection of lenders.

16. The Corporation shall keep an account of the harbour debt separate from the other accounts of the burgh showing all moneys received on account of the harbour debt and all moneys expended thereon or in connection therewith. Separate account of harbour debt to be kept.

17. All costs charges and expenses of or incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Corporation out of moneys to be borrowed under the powers of this Order or out of the harbour debt assessment or out of any of their funds but shall be ultimately charged to the account of the harbour debt. Provided that if the said costs charges and expenses are paid out of borrowed money the same shall be repaid within five years from the commencement of this Order. Costs of Order.

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